

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #13	CCRB Case #: 202200539	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/06/2021 6:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/6/2023	Precinct: 73		
Date/Time CV Reported Wed, 01/26/2022 12:46 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Wed, 01/26/2022 12:46 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jerry Celus	24856	962305	073 PCT
2. PO Derrell Henry	06754	966101	073 PCT
3. SGT Christopher Musa	03353	952040	073 PCT
4. PO Nicolas Fratto	13727	967513	073 PCT
5. DTS Sunjay Verma	02972	963315	073 PCT
6. PO Ryan Diaz	04276	970491	073 PCT
7. PO Gregory Clena	08078	964447	073 PCT
8. PO Nickita Beckford	04258	964388	073 PCT
9. PO Jonathan Aquino	15569	957337	073 PCT
10. PO Maher Kader	11104	964580	073 PCT
11. PO Sali Cerimi	08390	965974	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Thomas Turner	00000	926232	073 PCT
2. PO Matthew Strzelczyk	02191	953453	073 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Derrell Henry	Abuse: Police Officer Derrell Henry entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . SGT Christopher Musa	Abuse: Sergeant Christopher Musa entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . SGT Christopher Musa	Discourtesy: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa spoke discourteously to § 87(2)(b)	C . Unfounded
D . SGT Christopher Musa	Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa used physical force against § 87(2)(b)	D . Substantiated
E . SGT Christopher Musa	Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa used a chokehold against § 87(2)(b)	E . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
F . SGT Christopher Musa	Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa restricted § 87(2)(b) breathing.	F . Substantiated
G . SGT Christopher Musa	Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa hit § 87(2)(b) against an object.	G . Substantiated
H . PO Jerry Celus	Force: At § 87(2)(b) in Brooklyn, Police Officer Jerry Celus used physical force against § 87(2)(b)	H . Exonerated
I . PO Nicolas Fratto	Force: At § 87(2)(b) in Brooklyn, Police Officer Nicolas Fratto used physical force against § 87(2)(b)	I . Exonerated
J . SGT Christopher Musa	Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa restricted § 87(2)(b) breathing.	J . Unsubstantiated
K . SGT Christopher Musa	Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa used physical force against § 87(2)(b)	K . Unsubstantiated
L . SGT Christopher Musa	Abuse: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa threatened § 87(2)(b) with the use of force.	L . Exonerated
M . PO Nicolas Fratto	Force: Police Officer Nicolas Fratto used physical force against § 87(2)(b)	M . Exonerated
N . PO Derrell Henry	Force: Police Officer Derrell Henry used physical force against § 87(2)(b)	N . Exonerated
O . PO Derrell Henry	Force: At § 87(2)(b) in Brooklyn, Police Officer Derrell Henry used physical force against § 87(2)(b)	O . Exonerated
P . PO Nickita Beckford	Force: At § 87(2)(b) in Brooklyn, Police Officer Nickita Beckford used physical force against § 87(2)(b)	P . Exonerated
Q . PO Maher Kader	Force: At § 87(2)(b) in Brooklyn, Police Officer Maher Kader used physical force against § 87(2)(b)	Q . Exonerated
R . PO Sali Cerimi	Force: At § 87(2)(b) in Brooklyn, Police Officer Sali Cerimi used physical force against § 87(2)(b)	R . Exonerated
S . PO Ryan Diaz	Force: At § 87(2)(b) in Brooklyn, Police Officer Ryan Diaz used physical force against § 87(2)(b)	S . Exonerated
T . PO Derrell Henry	Force: At § 87(2)(b) in Brooklyn, Police Officer Derrell Henry used physical force against § 87(2)(b)	T . Exonerated
U . PO Jonathan Aquino	Force: At § 87(2)(b) in Brooklyn, Police Officer Jonathan Aquino used physical force against § 87(2)(b)	U . Exonerated
V . DTS Sunjay Verma	Force: At § 87(2)(b) in Brooklyn, Police Officer Sunjay Verma used physical force against § 87(2)(b)	V . Exonerated
W . PO Gregory Clena	Force: At § 87(2)(b) in Brooklyn, Police Officer Gregory Clena used physical force against § 87(2)(b)	W . Exonerated
X . PO Nickita Beckford	Force: Outside § 87(2)(b) in Brooklyn, Police Officer Nickita Beckford hit § 87(2)(b) against a vehicle.	X . Unfounded
Y . DTS Sunjay Verma	Force: Inside a marked police vehicle, Police Officer Sunjay Verma used physical force against § 87(2)(b)	Y . Exonerated
Z . DTS Sunjay Verma	Force: Inside a marked police vehicle, Police Officer Sunjay Verma restricted § 87(2)(b) breathing.	Z . Unsubstantiated

Case Summary

On January 26, 2022, the New York City Department of Investigation referred to the CCRB a complaint made by an anonymous Administration for Children's Services (ACS) worker and § 87(2)(b) and the anonymous ACS worker filed this complaint on behalf of § 87(2)(b) and § 87(2)(b).

On October 6, 2021, at approximately 6:50 p.m., Police Officer Jerry Celus and Police Officer Derrell Henry (both of the 73rd Precinct) arrived at § 87(2)(b) in Brooklyn to assist in an emergency ACS removal ordered by social worker § 87(2)(b). PO Henry opened the apartment door after § 87(2)(b) closed it (**Allegation A, Abuse of Authority: Entry of Premises, Within NYPD Guidelines**). Their supervisor, Sergeant Christopher Musa of the 73rd Precinct, later arrived at the scene. Sgt. Musa entered § 87(2)(b) where § 87(2)(b) and § 87(2)(b) stayed with § 87(2)(b) 11-year-old son § 87(2)(b) and § 87(2)(b) infant son § 87(2)(b) (**Allegation B, Abuse of Authority: Entry of Premises, Within NYPD Guidelines**). § 87(2)(b) and § 87(2)(b) stood in a bedroom with § 87(2)(b) a social worker. § 87(2)(b) began to close the bedroom door on Sgt. Musa. Sgt. Musa allegedly said, "I ain't got time for this shit" (**Allegation C, Discourtesy: Word, Unfounded**). Sgt. Musa wrapped his forearm around § 87(2)(b) neck, lifted her off the ground, swung her legs into a dresser, and took her to the ground (**Allegation D, Force: Physical Force, Substantiated**)(**Allegation E, Force: Chokehold, Substantiated**)(**Allegation F, Force: Restricted Breathing, Substantiated**)(**Allegation G, Force: Hit Against Inanimate Object, Substantiated**). Once on the ground, Sgt. Musa, PO Celus, and Police Officer Nicolas Fratto (also of the 73rd Precinct) attempted to handcuff § 87(2)(b) (**Allegations H and I, Force: Physical Force, Within NYPD Guidelines**). Sgt. Musa placed his knee on § 87(2)(b) upper back (**Allegation J, Force: Physical Force, Unable to Determine**)(**Allegation K, Force: Restricted Breathing, Unable to Determine**). Sgt. Musa took out his Taser and verbally threatened to Tase § 87(2)(b) (**Allegation L, Abuse of Authority: Threat of Force, Within NYPD Guidelines**). PO Henry and PO Fratto handcuffed § 87(2)(b) (**Allegations M and N, Force: Physical Force, Within NYPD Guidelines**).

PO Henry and Police Officer Nickita Beckford (also of the 73rd Precinct) held § 87(2)(b) head against a wall in the 4th floor hallway of § 87(2)(b) (**Allegations O and P, Force: Physical Force, Within NYPD Guidelines**). Police Officer Maher Kader, Police Officer Sali Cerimi, and Police Officer Ryan Diaz (all of the 73rd Precinct) carried § 87(2)(b) downstairs to a marked police vehicle (**Allegations Q, R, and S, Force: Physical Force, Within NYPD Guidelines**). PO Henry, Police Officer Jonathan Aquino, Detective Sunjay Verma, and Police Officer Gregory Clena (all of the 73rd Precinct) carried § 87(2)(b) to a marked police vehicle (**Allegations T, U, V, and W, Force: Physical Force, Within NYPD Guidelines**). PO Beckford allegedly struck § 87(2)(b) head against a police vehicle (**Allegation X, Force: Hit Against Inanimate Object, Unfounded**). Det. Verma restrained § 87(2)(b) in a police vehicle and allegedly restricted her breathing (**Allegation Y, Force: Physical Force, Within NYPD Guidelines**)(**Allegation Z, Force: Restricted Breathing, Unable to Determine**).

PO Celus arrested both § 87(2)(b) and § 87(2)(b) for resisting arrest, endangering the welfare of a child, and obstruction of governmental administration (**BR 01-02**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

The investigation received body-worn camera (BWC) footage from the following officers: PO Aquino, PO Beckford, PO Celus, PO Cerimi, PO Clena, PO Diaz, PO Fratto, PO Henry, Sgt. Musa, Police Officer Matthew Strzelczyk, Lieutenant Thomas Turner, and Det. Verma (**BR 05-17**). The relevant aspects of this footage shall be discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Derrell Henry entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Sergeant Christopher Musa entered § 87(2)(b).

§ 87(2)(b) **in Brooklyn.**

The investigation has established the following facts: On the evening of October 6, 2021, ACS social worker § 87(2)(b) appeared at § 87(2)(b) to conduct an emergency removal of a child. Four individuals, § 87(2)(b) § 87(2)(b) (daughter), § 87(2)(b) 11-year-old son, § 87(2)(b) and § 87(2)(b) infant son, § 87(2)(b) lived at the apartment. § 87(2)(b) was the child subject to removal. § 87(2)(b) had submitted paperwork for an emergency removal earlier on October 6, 2021, but did not have the removal paperwork physically on his person.

§ 87(2)(b) (BR 18) said that when officers first arrived, either PO Celus or PO Henry put their foot in the door to prevent her from closing it. § 87(2)(b) asked them why they were at her residence, and they said that they were there to remove § 87(2)(b) from the apartment.

§ 87(2)(b)

Sgt. Musa later arrived at the apartment. § 87(2)(b) invited him in to speak further. Several other officers entered the apartment with Sgt. Musa.

Neither PO Celus' nor PO Henry's BWC activations (BR 05-06) show either of them putting their foot in the front door to prevent § 87(2)(b) from being able to close it. However, at the 02:05 timestamp of PO Celus' BWC activation (BR 05), PO Henry opens § 87(2)(b) door after she closed it on the officers and § 87(2)(b) PO Henry tells § 87(2)(b) that there is an emergency removal order for the location.

Per Sgt. Musa's BWC activation (BR 08), he speaks at length with § 87(2)(b) between the 03:30 and 06:00 timestamps. § 87(2)(b) tells Sgt. Musa that he had reached out to the family court earlier in the day and had been directed to remove § 87(2)(b) from § 87(2)(b) custody.

At the 06:10 timestamp, Sgt. Musa asks to come inside and § 87(2)(b) accedes.

Between the 12:00 and 18:00 timestamps, Sgt. Musa sidebars again with § 87(2)(b) and converses with an ACS staff attorney over the phone. The attorney tells Sgt. Musa that § 87(2)(b) can make the decision to conduct an emergency removal and confirms that § 87(2)(b) submitted paperwork for a court order that would be finalized the following day.

PO Henry (BR 28) said that he responded to the location knowing that ACS was requesting assistance in conducting an emergency removal. Sgt. Musa ultimately determined that officers would conduct the removal.

Sgt. Musa (BR 19) confirmed that he decided to enter the home to conduct the removal only after receiving confirmation from the ACS attorney that § 87(2)(b) could decide to conduct an emergency removal.

ACS refused to provide the CCRB with the ACS case file or the removal order.

As noted in Patrol Guide Procedure 215-03 (BR 20), "An emergency removal without a court order may be performed by the following persons: peace officer, police officer, an agent of a duly incorporated Society for the Prevention of Cruelty to Children, a designated employee of a city or county Department of Social Services. The Family Court Act Sec. 1024 and Social Service Law Sec. 417 give ACS the same powers of removal as police officers. Once any authorized person decides to conduct an emergency removal, no member of this Department will revoke that decision" (Emphasis original).

Per *People v. Rodriguez*, 77 A.D.3d 280 (BR 21), officers may conduct a warrantless entry of a home if they have reasonable grounds to believe there is an emergency at hand and reasonable basis to associate that emergency with the area or place to be searched.

§ 87(2)(g)

It is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Discourtesy: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 18) alleged that Sgt. Musa said, “I ain’t got time for this shit” while he stood outside her bedroom door.

Per Sgt. Musa’s BWC activation (BR 08), Sgt. Musa stands inside the apartment but outside § 87(2)(b) bedroom from the 17:20 to 29:10 timestamps before conducting the emergency removal. At no point does he use profanity or say anything approximating, “I ain’t got time for this shit.”

It is recommended that Allegation C be unfounded.

Allegation (D) Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa used physical force against § 87(2)(b)

Allegation (E) Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa used a chokehold against § 87(2)(b)

Allegation (F) Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa restricted § 87(2)(b) breathing.

Allegation (G) Force: At § 87(2)(b) in Brooklyn, Sergeant Christopher Musa hit § 87(2)(b) against an object.

The investigation established the following facts: after Sgt. Musa spoke with the ACS attorney, § 87(2)(b) came to the apartment. § 87(2)(b) was a parent coach for § 87(2)(b) spoke with § 87(2)(b) and § 87(2)(b) in a bedroom for several minutes while § 87(2)(b) held onto § 87(2)(b). After several minutes, Sgt. Musa reentered the room and restrained § 87(2)(b).

§ 87(2)(b) (BR 18) said that after Sgt. Musa allegedly said, “I ain’t got time for this shit,” she moved toward the bedroom doorknob to close the door. At the time, she was in bedroom with § 87(2)(b) and § 87(2)(b). Before she could close the door, Sgt. Musa punched § 87(2)(b) with a closed fist on her right cheekbone and then swung her around the room by wrapping his arm around her neck and twisting her around. § 87(2)(b) could not breathe during this time. § 87(2)(b) foot hit something, and Sgt. Musa slammed § 87(2)(b) to the floor on her chest, facedown. Several additional officers then jumped atop § 87(2)(b) (see Allegations H, I, J, K and L).

§ 87(2)(b) (BR 41) said that she consulted with § 87(2)(b) briefly, confirming that ACS was there to conduct an emergency removal, before entering the apartment and speaking with § 87(2)(b). § 87(2)(b) closed the bedroom door to talk to § 87(2)(b). § 87(2)(b) sat down on the bed and started to talk with § 87(2)(b). Sgt. Musa almost immediately said, “We’re not doing this,” and kicked the door open with one foot; § 87(2)(b) hypothesized that Sgt. Musa was impatient because he had been at the location for a while. Sgt. Musa grabbed § 87(2)(b) arms and directed a Black officer to grab § 87(2)(b). Sgt. Musa pulled § 87(2)(b) back by her head. In doing so, Sgt. Musa ripped off § 87(2)(b) wig (see allegations M and N below). § 87(2)(b) tried to intervene. Sgt. Musa threw § 87(2)(b) on the floor and placed a foot on her back.

§ 87(2)(b) was unavailable to the investigation.

The BWC activation which best captures this facet of the incident is PO Henry’s (BR 06). At the 48:25 timestamp, § 87(2)(b) stands in the bedroom just behind the door while Sgt. Musa speaks with her in the threshold of the door. PO Celus and PO Henry stand behind Sgt. Musa. § 87(2)(b) and § 87(2)(b) are located further inside the bedroom behind § 87(2)(b). At the 48:35 timestamp, § 87(2)(b) asks Sgt. Musa to step out of the bedroom. Sgt. Musa then grips § 87(2)(b) right arm with his right hand. PO Henry then briefly changes his position; Sgt. Musa and § 87(2)(b) are briefly not visible in the frame. At the 48:38 timestamp, Sgt. Musa wraps his right arm around § 87(2)(b) neck, standing behind her (BR 36-39). At first, § 87(2)(b) falls towards the ground. Sgt. Musa then twists his body. Sgt. Musa’s holds his right forearm against § 87(2)(b).

§ 87(2)(b) neck as he lifts § 87(2)(b) off the ground and twists his body clockwise. § 87(2)(b) body also turns clockwise. § 87(2)(b) continues airborne until her legs hit a dresser. § 87(2)(b) then falls to the ground. PO Celus and Sgt. Musa then orient themselves above § 87(2)(b)

Sgt. Musa's BWC is obfuscated during this timeframe.

Sgt. Musa (BR 19) said that he learned of § 87(2)(b) criminal history at some point during the incident, specifically learning that § 87(2)(b) had been arrested approximately 30 times, including for charges of resisting arrest and violent offenses. Sgt. Musa did not remember what the violent offenses were, nor did he recall if anyone present ever made threats to officers or ACS workers.

Sgt. Musa said that he diplomatically approached the situation for approximately forty minutes, speaking with the ACS workers on-scene, the ACS attorney by phone, and § 87(2)(b) in an attempt to have § 87(2)(b) voluntarily hand over § 87(2)(b). At one point, § 87(2)(b) showed up at the location and Sgt. Musa allowed her to convene with § 87(2)(b) and § 87(2)(b) under the auspices of having § 87(2)(b) voluntarily surrender § 87(2)(b) to ACS. At one point, § 87(2)(b) and § 87(2)(b) consulted one another in a bedroom with the door closed, which concerned Sgt. Musa – he did not know what they were doing because the door was closed. They ultimately reopened the bedroom door, at which point it became apparent that they were not going to voluntarily allow the removal to proceed. § 87(2)(b) told Sgt. Musa that he had to leave.

Sgt. Musa determined that the next course of action was to remove § 87(2)(b) from the room and place her under arrest for obstruction of governmental administration, specifically the emergency removal. Sgt. Musa did not wish to arrest her in front of § 87(2)(b) and thus wanted to remove her from the room. Sgt. Musa said his “number one priority was the safety of the child.”

At the time that Sgt. Musa effected the removal, several people were inside a bedroom: § 87(2)(b) and § 87(2)(b)

Prior to reviewing BWC, Sgt. Musa provided the following narrative describing the physical actions he took vis-à-vis § 87(2)(b). Sgt. Musa first placed his hands on § 87(2)(b) arm. § 87(2)(b) then pulled away from Sgt. Musa and retreated into the bedroom. Sgt. Musa grabbed § 87(2)(b) from behind with his arms across her shoulders, twisted her around, and placed her on the ground. Sgt. Musa did not know if § 87(2)(b) body struck any furniture. Sgt. Musa did not know § 87(2)(b) body positioning when she first went to the ground.

The investigation then presented PO Henry's BWC activation from the 48:30 to the 49:10 timestamps. Sgt. Musa said that he took § 87(2)(b) to the ground for the following reasons.

I had a split second to make that decision. I mean, I needed to place her in custody away from the child as quick as possible. Knowing her history of resisting and being in an unknown room – not knowing what was in there – that she was trying to get deeper into – I was making sure she could not grab a weapon to use against us. I mean, if you're taking someone's child, in my head, I'm assuming they're gonna do whatever they can do to prevent you from taking that child.

Sgt. Musa later noted that the severity of the job and § 87(2)(b) retreating into the room also factored. Sgt. Musa also noted that, during the time that the door was closed prior, the women in the room had “ample time to prepare anything.” Sgt. Musa added that, upon BWC review, he saw that he made incidental and unintentional contact with § 87(2)(b) neck using his arm while taking her to the ground. Sgt. Musa did not apply pressure to § 87(2)(b) neck and did not obstruct her breathing. Sgt. Musa also noted that, upon BWC review, he saw that § 87(2)(b) feet struck a dresser, which was also unintentional. Sgt. Musa ultimately noted that he could not speak as to whether § 87(2)(b) breathing was restricted.

PO Henry (BR 28) said that Sgt. Musa used a forcible takedown to get § 87(2)(b) to the ground; Sgt. Musa grabbed § 87(2)(b) and pulled her to the ground. Sgt. Musa “bear-hugged” § 87(2)(b) around her torso and brought her to the ground.

§ 87(2)(b) listed herself as 5'4" and 162 pounds at the time of her interview (BR 22). § 87(2)(b) was listed as 5'3" and 180 pounds in her arrest report (BR 02).

Sgt. Musa listed himself as 6'4" and 225 pounds at the time of his interview and was listed as the same in his MOS photo (BR 23, 40).

Lieutenant Thomas Turner prepared a Threat, Resistance, and Injury Report regarding this incident (BR 24). The TRI noted the uses of force used by members of service as a forcible takedown and wrestling/grappling. There is no mention of a chokehold. The TRI sorted the type of incident as "Active Resistance towards MOS, Force Against MOS, Force By MOS, Subject Injured." Lieutenant Turner ultimately closed the TRI as a Level 1 interaction and prepared no notifications in regard.

PO Celus arrested § 87(2)(b) (BR 02) for resisting arrest, endangering the welfare of a child, and obstruction of governmental administration in the second degree. PO Celus wrote in the details, "At T/P/O both defendants intentionally prevent[ed] ACS workers from performing a legal emergency removal order by means of intimidation and physical force[:] in the process endangering the welfare of a child who was present in the room."

From these facts the investigation has established the following: § 87(2)(b) who was approximately 5'3" to 5'4" tall and between 162 and 180 pounds, refused to surrender § 87(2)(b) to ACS custody. Sgt. Musa, who was approximately 6'4" tall and 225 pounds, allowed § 87(2)(b) and § 87(2)(b) to discuss the situation privately in a closed bedroom. § 87(2)(b) eventually opened the door and spoke further with Sgt. Musa in a calm tone of voice. During the conversation, she made no threats of violence but was not compliant with Sgt. Musa's repeated requests to facilitate § 87(2)(b) transfer to ACS custody. § 87(2)(b) who was still in the bedroom with § 87(2)(b) and § 87(2)(b) asked Sgt. Musa to leave the bedroom. In response, Sgt. Musa immediately grabbed § 87(2)(b) arm.

Sgt. Musa at that point decided to remove § 87(2)(b) from the room and arrest her for obstruction of governmental administration, adding that his primary concern was for § 87(2)(b). Sgt. Musa noted that he was concerned because of § 87(2)(b) arrest history, although he could not recall any specific violent offenses she had committed. Sgt. Musa was further concerned because he did not know what § 87(2)(b) and the other women had been doing when the door to the room was closed (although he could not articulate any specific concerns) and because he was generally concerned about what someone would do if their child was physically removed from their custody against their will, specifically assuming that they would become violent to prevent the removal from happening.

Having grabbed § 87(2)(b) arm, he § 87(2)(g) folding his right arm around her neck while he stood behind her, lifted § 87(2)(b) off the ground by her neck, twisted her body until the lower portion of her legs struck a wood dresser, and forcibly took her to the ground.

Sgt. Musa denied that he intentionally used a chokehold, restricted § 87(2)(b) breathing, or struck her legs against the dresser.

Per Patrol Guide Procedure 221-01 (BR 25), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Per the same procedure, "a chokehold shall include, but is not limited to, any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake of air or blood flow."

Per the same procedure, "members of the service **SHALL NOT** use a chokehold" (emphasis in original).

Per Patrol Guide Procedure 221-02 (BR 26), de-escalation is “taking action to stabilize the situation and reduce the immediacy of the threat so that more times, options, and/or resources become available. The goal is to gain the voluntary compliance of the subject, when appropriate and consistent with personal safety, to reduce or eliminate the necessity to use force.”

Per New York City Administrative Code 10-181 (BR 27), no person shall restrain an individual in a manner that restricts the flow of air or blood by compressing the windpipe or the carotid arteries on each side of the neck, or sitting, kneeling, or standing on the chest or back in a manner that compresses the diaphragm, in the course of effecting or attempting to effect an arrest.

§ 87(2)(g)

Sgt. Musa, who was almost one foot taller than § 87(2)(b) and approximately 50 pounds heavier than she, immediately and unilaterally escalated a previously nonviolent but contentious situation. § 87(2)(g) by folding his right arm around her neck while he stood behind her, lifted § 87(2)(b) off the ground by her neck, twisted her body until the lower portion of her legs struck a wood dresser, and forcibly took her to the ground.

§ 87(2)(g)

§ 87(2)(g) BWC captures not only sustained contact with her neck, but also Sgt. Musa lifting § 87(2)(b) up from the ground by her neck in a confined space in front of a small child and three other non-violent, female civilians, twisting her body further into the room and closer to a dresser, and ultimately hitting her legs against the dresser while taking her to the ground. Furthermore, there were three additional officers present in the immediate vicinity to offer assistance. § 87(2)(g)

§ 87(2)(g)

It is recommended that Allegations D, E, F, and G be substantiated.

Allegation (H) Force: At § 87(2)(b) **in Brooklyn, Police Officer**

Jerry Celus used physical force against § 87(2)(b)

Allegation (I) Force: At § 87(2)(b) **in Brooklyn, Police Officer**

Nicolas Fratto used physical force against § 87(2)(b)

Allegation (J) Force: At § 87(2)(b) **in Brooklyn, Sergeant**

Christopher Musa restricted § 87(2)(b) **breathing.**

Allegation (K) Force: At § 87(2)(b) **in Brooklyn, Sergeant**

Christopher Musa used physical force against § 87(2)(b)

Allegation (L) Abuse of Authority: At § 87(2)(b) **in Brooklyn,**

Sergeant Christopher Musa threatened § 87(2)(b) **with the use of force.**

§ 87(2)(b) (BR 18) said that once Sgt. Musa knocked her to the ground, approximately five male officers jumped atop her. The officers pulled § 87(2)(b) hand all the way up her back

towards the small of her neck. It felt like § 87(2)(b) arm was being pulled out of its socket. § 87(2)(b) told the officers two to three times that she could not breathe because of her asthma and her health. § 87(2)(b) alleged that either PO Celus or PO Henry placed a knee in the middle of her back slightly below the shoulder blades, rendering her unable to move. The other officers grabbed her arms and legs, pushed her down, and § 87(2)(b) felt hands all over her body. An officer held § 87(2)(b) by her head and hair. § 87(2)(b) could not see what officers were doing because she was facing the ground. Sgt. Musa told her, "If you don't stay still, I'm going to Tase you." Sgt. Musa continued to point his Taser at § 87(2)(b) until other officers stood her up. § 87(2)(b) said that at no point she kicked any officers or initiated any physical contact with the officers.

§ 87(2)(b) (BR 41) did not speak to what happened to § 87(2)(b) after Sgt. Musa brought her to the ground.

§ 87(2)(b) was unavailable to the investigation.

Per PO Henry's BWC activation (BR 06), Sgt. Musa brings § 87(2)(b) to the ground at the 48:41 timestamp. § 87(2)(b) lays on her stomach. Sgt. Musa at first straddles § 87(2)(b) while PO Fratto and PO Henry approach to assist. Starting at the 48:48 timestamp, Sgt. Musa places his right knee near the center of § 87(2)(b) back. PO Henry's BWC is then obfuscated. At the 48:57 timestamp, Sgt. Musa's knees are on the floor next to § 87(2)(b) body, who remains on her stomach and facing the ground. PO Henry then turns his attention to § 87(2)(b) (see **Allegations L and M**).

PO Celus' BWC activation (BR 05) is generally consistent with that of PO Henry between the 48:40 and 48:58 timestamps. § 87(2)(b) holds her arms close to her body. At the 49:03 timestamp, § 87(2)(b) begins kicking her feet. § 87(2)(b) holds her right arm away from PO Celus. She pulls both arms away from officers towards her chest. § 87(2)(b) turns her body onto her back. Sgt. Musa points his Taser at § 87(2)(b) starting at the 49:24 timestamp. § 87(2)(b) continues to move her body and kick her legs. PO Fratto and PO Celus hold onto § 87(2)(b) arms. PO Celus handcuffs § 87(2)(b) at the 50:00 timestamp with the assistance of PO Fratto and Sgt. Musa. PO Celus sits § 87(2)(b) upright at the 50:32 timestamp. At the 50:47 timestamp, § 87(2)(b) breaks free of her handcuffs and thrashes her body. PO Celus grabs § 87(2)(b) arms again and rehandcuffs her wrists. PO Celus then holds onto § 87(2)(b) and has her sit upright again at the 51:30 timestamp. PO Celus and PO Fratto ultimately walk § 87(2)(b) out of the apartment at the 54:10 timestamp.

PO Fratto's BWC activation (BR 07) is generally consistent with that of PO Celus. At the 30:00 timestamp, Sgt. Musa tells § 87(2)(b) that he will Tase her if she does not give over her hands.

Sgt. Musa's BWC (BR 08) had fallen to the floor during the timeframe of these allegations.

Sgt. Musa (BR 19) said that once he brought § 87(2)(b) to the ground, he attempted to handcuff her. § 87(2)(b) resisted, specifically spitting and kicking. § 87(2)(b) kicked Sgt. Musa in the groin. Sgt. Musa did not remember his positioning when § 87(2)(b) kicked him in the groin. Sgt. Musa did not remember if § 87(2)(b) struck anyone else with her feet or legs. Sgt. Musa was not sure if § 87(2)(b) simultaneously spat while she kicked. § 87(2)(b) clenched her fists close to her body. Sgt. Musa did not remember the exact actions he took to overcome § 87(2)(b) resistance; Sgt. Musa noted that there were eight people (the four people previously noted as well as himself, PO Fratto, PO Celus, and PO Henry) in a small room, that it was crowded, that Sgt. Musa is a big 6'4" tall man, and the situation was cramped. PO Fratto and PO Celus assisted in handcuffing § 87(2)(b). It was difficult to place her into handcuffs. It took approximately two to three minutes to handcuff § 87(2)(b) – she resisted the entire time. Sgt. Musa did not remember any specific statements § 87(2)(b) made during this time.

Sgt. Musa reviewed PO Henry's BWC activation from the 48:45 to the 49:00 timestamps multiple times during his interview. Sgt. Musa confirmed that he had placed a knee in § 87(2)(b) back. During the incident itself, Sgt. Musa was never aware of whether his knees came into contact with § 87(2)(b) body. Sgt. Musa again noted the close quarters of the situation. Sgt. Musa never

intended to place his knee on § 87(2)(b) body. Sgt. Musa had no intent to restrict § 87(2)(b) breathing and no intent on applying pressure.

Per Patrol Guide Procedure 221-01 (BR 25), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g) It is recommended that **Allegations H and I** be closed as **Within NYPD Guidelines**.

Per New York City Administrative Code 10-181 (BR 27), no person shall restrain an individual in a manner that restricts the flow of air or blood by compressing the windpipe or the carotid arteries on each side of the neck, or sitting, kneeling, or standing on the chest or back in a manner that compresses the diaphragm, in the course of effecting or attempting to effect an arrest.

BWC shows that Sgt. Musa placed his knee in the center of § 87(2)(b) back for several seconds. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations J and K** be closed as **Unable to Determine**.

Per Patrol Guide Procedure 221-08 (BR 23), members of service should only use conducted electrical weapons against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons actually present. The procedure notes that "active resisting includes physically evasive movements to defeat a member of service's attempt at control." Officers are to issue an appropriate verbal warning when feasible.

§ 87(2)(b) actively resisted, specifically kicking and thrashing her body, for approximately one minute before Sgt. Musa pointed his Taser at her. § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegation L** be closed as **Within NYPD Guidelines**.

Allegation (M) Force: At § 87(2)(b) **in Brooklyn, Police Officer Nicolas Fratto used physical force against** § 87(2)(b)

Allegation (N) Force: At § 87(2)(b) **in Brooklyn, Police Officer Derrell Henry used physical force against** § 87(2)(b)

§ 87(2)(b) (BR 18) said that when she reviewed the BWC for this incident, she saw an officer dislodge § 87(2)(b) wig and grab § 87(2)(b) off her bed to place her in handcuffs.

§ 87(2)(b) (BR 41) said that Sgt. Musa grabbed § 87(2)(b) arms and directed a Black officer to grab § 87(2)(b) Sgt. Musa pulled § 87(2)(b) back by her head. In doing so, Sgt. Musa ripped off § 87(2)(b) wig. § 87(2)(b) tried to intervene. Sgt. Musa threw § 87(2)(b) on the floor and placed a foot on her back. § 87(2)(b) jumped on the bed and tried to back away from the officers. Officers jumped on her bed and then grabbed § 87(2)(b) to handcuff her. § 87(2)(b) had no weapons and never tried to fight the officers. § 87(2)(b) screamed, "I didn't do nothing!" Sgt. Musa grabbed § 87(2)(b) by her neck.

§ 87(2)(b) was unavailable to the investigation.

Per PO Henry's BWC activation (BR 06), he and § 87(2)(b) begin their interaction at the 49:00 timestamp. For nearly a minute, PO Henry touches § 87(2)(b) and tries to take custody of the child from § 87(2)(b). PO Henry does not forcibly pull or wrench § 87(2)(b) out of § 87(2)(b) hands. At the 50:10 timestamp, he is successful in his efforts and has sole custody of § 87(2)(b). PO Henry hands § 87(2)(b) off to Sgt. Musa. PO Henry, at the 50:24 timestamp, grips both of § 87(2)(b) arms and attempts to hold them close together. § 87(2)(b) apparently contorts her arms to loosen PO Henry's grip. At the 50:43 timestamp, PO Henry regains control of § 87(2)(b) arms, folding one wrist over the other behind her back. § 87(2)(b) then jumps on a bed. PO Fratto and PO Henry grab § 87(2)(b) who sits down on the bed. PO Henry and PO Fratto then handcuff § 87(2)(b). PO Henry ultimately walks § 87(2)(b) out of the apartment at the 53:50 timestamp. PO Henry holds onto § 87(2)(b) arms while she sways her body back and forth.

The investigation reviewed PO Celus', PO Fratto's, PO Henry's, and Sgt. Musa's BWC activations that captured the timeframe in which these allegations occurred (BR 05-08) – while it is clear that § 87(2)(b) wears a wig at the beginning, it is unclear who, if anyone, removes the wig from her head.

PO Henry (BR 28) said that his main objective, once Sgt. Musa went to place § 87(2)(b) under arrest, was to get custody of the child. PO Henry went to grab the child. § 87(2)(b) pulled away from PO Henry in response. § 87(2)(b) hesitatingly gave the child over PO Henry. PO Henry described § 87(2)(b) as slightly resistant in handing the child over; he again described how § 87(2)(b) pulled away when PO Henry tried to pick up the child. PO Henry then passed the child over to either ACS or another officer. PO Henry then assisted in handcuffing § 87(2)(b). PO Henry did not remember seeing any officer pull § 87(2)(b) wig off. PO Henry did not ever pull off § 87(2)(b) wig. PO Henry went to handcuff § 87(2)(b). § 87(2)(b) posed minor physical resistance, but the handcuffing process was generally smooth. PO Henry took one hand, handcuffed it, then took the other hand and handcuffed it as well.

Sgt. Musa (BR 19) said that PO Henry struggled with § 87(2)(b) to gain custody of § 87(2)(b). PO Henry handed § 87(2)(b) to Sgt. Musa. Sgt. Musa then walked § 87(2)(b) out of the apartment and handed him over to ACS.

The investigation determined an interview with PO Fratto to be unnecessary.

The investigation pleaded these allegations to PO Henry and PO Fratto because they were the sole officers to restrain and handcuff § 87(2)(b).

Per Patrol Guide Procedure 221-01 (BR 25), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(b) was under arrest for obstructing governmental administration. § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegations M and N** be closed as **Within NYPD Guidelines**.

Allegation (O) Force: At § 87(2)(b) in Brooklyn, Police Officer Derrell Henry used physical force against § 87(2)(b)

Allegation (P) Force: At § 87(2)(b) in Brooklyn, Police Officer Nickita Beckford used physical force against § 87(2)(b)

§ 87(2)(b) (BR 18) said that when she reviewed BWC for this incident, she saw officers press their forearms against § 87(2)(b) neck against a wall.

§ 87(2)(b) (BR 41) did not speak to what happened with § 87(2)(b) during this

portion of the incident.

§ 87(2)(b) was unavailable to the investigation.

Per PO Beckford's BWC (BR 09), starting at the 01:20 timestamp, § 87(2)(b) walks out of the apartment and into the § 87(2)(b) hallway. § 87(2)(b) initially falls to the ground but PO Beckford and PO Henry pull her upright. PO Beckford and PO Henry then hold onto § 87(2)(b) arms and have her face towards a wall. At the 02:03 timestamp, § 87(2)(b) spits at someone (per PO Aquino's BWC activation (BR 13) at the 01:50 timestamp, § 87(2)(b) spit lands on Det. Verma). Thereafter, PO Beckford places her left hand on the left cheek of § 87(2)(b) face while PO Henry places his forearm against the base of § 87(2)(b) head. § 87(2)(b) repeatedly tells the officers, "Get off my face," to which PO Henry responds, "Stop spitting." PO Henry then releases his arm.

PO Henry (BR 28) said he placed his forearm on § 87(2)(b) head to push her against the wall and keep her from further spitting at officers. PO Henry restrained § 87(2)(b) head for no additional reasons.

Sgt. Musa (BR 19) said he did not remember what actions officers took to remove § 87(2)(b) from the building and further did not remember if he directed any officers to take any specific actions to remove § 87(2)(b) from the building.

Det. Verma (BR 29) said he saw § 87(2)(b) yelling and cursing at officers, kicking her legs up as if to break free (by swaying her weight or kicking walls) to strike officers (in their legs or groins), and spitting at officers. Det. Verma did not see § 87(2)(b) kick anyone. § 87(2)(b) spat on Det. Verma's face. Det. Verma remembered some of § 87(2)(b) statements as follows: "Fuck you," "You guys don't touch me," "Get me out of these handcuffs." Det. Verma did not recall if § 87(2)(b) ever made any threats against officers.

The investigation determined additional officer interviews to be unnecessary.

Per Patrol Guide Procedure 221-01 (BR 25), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

PO Henry and PO Beckford held § 87(2)(b) head against a hallway wall after she successfully spat on an officer. § 87(2)(g)

It is recommended that **Allegations O and P** be closed as **Within NYPD Guidelines**.

Allegation (Q) Force: At § 87(2)(b) in Brooklyn, Police Officer Maher Kader used physical force against § 87(2)(b)

Allegation (R) Force: At § 87(2)(b) in Brooklyn, Police Officer Sali Cerimi used physical force against § 87(2)(b)

Allegation (S) Force: At § 87(2)(b) in Brooklyn, Police Officer Ryan Diaz used physical force against § 87(2)(b)

§ 87(2)(b) (BR 18) said that she initially walked out of her apartment under her own power. § 87(2)(b) then spat at § 87(2)(b) but did not hit him. § 87(2)(b) walked down the stairs and did not have to be carried down the stairs. At one point, § 87(2)(b) tried to hold onto the banister with her legs. A white male officer responded by pulling her hair and punching her in the side.

§ 87(2)(b) (BR 41) did not speak to how officers carried § 87(2)(b) downstairs.

§ 87(2)(b) was unavailable to the investigation.

Per PO Kader's BWC activation at the 01:00 timestamp (BR 14), § 87(2)(b) stands in the building hallway and spits at some of the ACS workers on-scene. Thereafter, an unidentified voice

tells officers to walk her backwards down the stairs. PO Kaher, PO Cerimi, and PO Diaz then walk § 87(2)(b) down the stairs. At first, PO Cerimi and PO Diaz hold § 87(2)(b) by the arms as they descend the first half-floor. Thereafter, PO Cerimi and PO Diaz hold § 87(2)(b) arms behind her back and have her walk backwards down the stairs. § 87(2)(b) repeatedly yells at officers to get off of her and says that she should not be being arrested. PO Cerimi and PO Diaz continue to hold onto § 87(2)(b) as she walks downstairs. Once outside at § 87(2)(b) at the 02:15 timestamp, PO Kader also holds onto § 87(2)(b) arms while walking her outside. At the 02:30 timestamp, § 87(2)(b) descends to the ground. PO Kader, PO Cerimi, and PO Diaz then lift § 87(2)(b) off the ground. The three officers ultimately seat § 87(2)(b) in a marked police SUV at the 03:40 timestamp. At no point does any officer pull § 87(2)(b) hair or punch her in the side.

PO Cerimi's BWC activation (BR 15) between the 00:00 and 02:40 timestamps and PO Diaz's BWC activation (BR 11) between the 02:00 and 04:40 timestamps are generally consistent with that of PO Kader.

Sgt. Musa (BR 19) said he did not know what actions officers took to take § 87(2)(b) out of the building. Sgt. Musa did not know if he directed any officers to take any specific actions to remove § 87(2)(b) from the building.

Det. Verma (BR 29) said he carried § 87(2)(b) down the stairs and did not speak to how § 87(2)(b) got downstairs.

The investigation determined officer interviews to be unnecessary for these allegations.

Per Patrol Guide Procedure 221-01 (BR 25), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(b) spat at an ACS worker. PO Kader, PO Cerimi, and PO Diaz walked § 87(2)(b) away from the situation by holding onto her arms and walking her downstairs and to a marked police vehicle § 87(2)(g).

it is recommended that **Allegations Q, R and S** be closed as **Within NYPD Guidelines**.

Allegation (T) Force: At § 87(2)(b) in Brooklyn, Police Officer Derrell Henry used physical force against § 87(2)(b)

Allegation (U) Force: At § 87(2)(b) in Brooklyn, Police Officer Jonathan Aquino used physical force against § 87(2)(b)

Allegation (V) Force: At § 87(2)(b) in Brooklyn, Police Officer Sunjay Verma used physical force against § 87(2)(b)

Allegation (W) Force: At § 87(2)(b) in Brooklyn, Police Officer Gregory Clena used physical force against § 87(2)(b)

§ 87(2)(b) (BR 18) said that she knew that officers had carried § 87(2)(b) down the stairs but did not know the methods employed in doing so.

§ 87(2)(b) (BR 41) did not speak to how officers carried § 87(2)(b) downstairs.

§ 87(2)(b) was unavailable to the investigation.

Per PO Verma's BWC (BR 12), at the 03:00 timestamp, PO Henry and PO Beckford pick up § 87(2)(b) with PO Beckford holding her torso and PO Henry holding her legs. PO Aquino then assists PO Beckford in holding onto § 87(2)(b) torso. The four then walk downstairs with PO Verma walking behind. At the 04:08 timestamp, while the officers still hold onto § 87(2)(b) body. PO Verma says, "Relax, I'm not pulling your hair, I'm just pointing your head, so you don't

spit anymore.” At the 04:20 timestamp, the four officers walk § 87(2)(b) outside. They all still carry her. Ultimately, PO Beckford sits § 87(2)(b) in a marked police sedan at the 05:58 timestamp.

PO Verma (BR 29) said that § 87(2)(b) refused to go downstairs. PO Verma did not remember if anyone ordered officers to carry § 87(2)(b) down the stairs. PO Verma saw § 87(2)(b) kick the railings and walls on the way downstairs. PO Verma’s CCRB statement was otherwise generally consistent with what was shown on his BWC activation.

PO Henry confirmed that he helped carry § 87(2)(b) downstairs to the police vehicle. PO Henry held onto her feet. She was resistant throughout, specifically squirming, alternately stiffing her body, and kicking. § 87(2)(b) spit at an officer at one point. PO Henry assisted in laying § 87(2)(b) down in the car. § 87(2)(b) continued to squirm and kick.

Sgt. Musa (BR 19) said he did not know what actions officers took to take § 87(2)(b) out of the building. Sgt. Musa did not know if he directed any officers to take any specific actions to remove § 87(2)(b) from the building.

The investigation determined additional officer interviews to be unnecessary.

Per Patrol Guide Procedure 221-01 (BR 25), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject’s violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Officers carried § 87(2)(b) downstairs after she spat on an officer. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations T, U, V, and W** be closed as **Within NYPD Guidelines**.

Allegation (X) Force: Outside § 87(2)(b) in Brooklyn, Police Officer Nickita Beckford hit § 87(2)(b) against a vehicle.

In her CCRB interview (BR 18), § 87(2)(b) said that while she sat in a police vehicle, she saw PO Beckford slam § 87(2)(b) head against another police vehicle, specifically pushing § 87(2)(b) head with an open hand against the frame of the car door. None of the police vehicle’s car doors were open – § 87(2)(b) said that PO Beckford was not attempting to place § 87(2)(b) inside a police vehicle at the time of this use of force.

§ 87(2)(b) (BR 41) did not speak to how officers placed § 87(2)(b) was placed in a police vehicle.

§ 87(2)(b) was unavailable to the investigation.

Per PO Beckford’s BWC activation (BR 09), at the 05:30 timestamp, she and PO Clena seat § 87(2)(b) inside a marked police vehicle. § 87(2)(b) head never strikes the vehicle.

§ 87(2)(g) It is recommended that **Allegation X** be **unfounded**.

Allegation (Y) Force: Inside a marked police vehicle, Police Officer Sunjay Verma used physical force against § 87(2)(b)

Allegation (Z) Force: Inside a marked police vehicle, Police Officer Sunjay Verma restricted § 87(2)(b) breathing.

This allegation stems from BWC.

Per PO Beckford’s BWC (BR 09), at the 06:00 timestamp, § 87(2)(b) sits in the backseat on a marked sedan. § 87(2)(b) is screaming in the car about needing to turn her body. PO Beckford shines a flashlight into the backseat, where PO Verma is apparently attempting to turn her

body. PO Verma grips § 87(2)(b) by her shoulders. PO Beckford closes the rear door and walks to the front passenger seat, where she sits down.

At the 06:30 timestamp, § 87(2)(b) yells that she cannot breathe. PO Verma retorts that § 87(2)(b) is screaming and she is breathing. At the 07:10 timestamp, PO Beckford orients her camera so that it faces the rear of the car, showing PO Verma and § 87(2)(b) in the backseat. It appears that PO Verma pushes § 87(2)(b) against the door. § 87(2)(b) head faces towards the window while PO Verma holds onto § 87(2)(b) by the arms. § 87(2)(b) says that she cannot breathe because PO Verma has his arm in her back. She then alleges that PO Verma beats his wife. § 87(2)(b) repeatedly screams that she cannot breathe. PO Verma maintains his position and continues to restrain § 87(2)(b) until the 09:00 timestamp, when they all arrive at the 73rd Precinct stationhouse.

Per PO Verma's BWC (BR 12), at the 06:10 timestamp, he sits down in the backseat with § 87(2)(b) knocks his camera off. § 87(2)(b) alleges that she cannot breathe. PO Verma tells her to take slow deep breaths. At the 06:45 timestamp, PO Verma puts his BWC back on. The perspective does not well-capture PO Verma's positioning vis-à-vis § 87(2)(b) repeatedly alleges that she cannot breathe while screaming at PO Verma. § 87(2)(b) repeatedly tells PO Verma to get off her. Ultimately, they arrive at the stationhouse and § 87(2)(b) gets out of the car at the 09:50 timestamp.

§ 87(2)(b) was unavailable to the investigation.

Det. Verma (BR 29) sat down in the backseat with § 87(2)(b) because he was nervous that she would try to kick out the window of his vehicle. § 87(2)(b) continued to kick, scream, and curse. Det. Verma did not remember any specific statements that § 87(2)(b) made. Det. Verma held § 87(2)(b) arm in place to keep her from moving around too much and kicking. Det. Verma did not push § 87(2)(b) against any surface inside the car. Det. Verma did not ever push § 87(2)(b) against the rear driver's side door. § 87(2)(b) did not ever say that she could not breathe.

Det. Verma then reviewed his BWC. Det. Verma said his right arm held onto § 87(2)(b) right arm while he held his left forearm outward pressed against the back of § 87(2)(b) shoulders. Det. Verma just held § 87(2)(b) away by holding out his forearm – he did not press § 87(2)(b) against any surface. Det. Verma was not taking any action that could have restricted § 87(2)(b) breathing when § 87(2)(b) said that she could not breathe. Regarding his comment in the video around the 07:23 timestamp that § 87(2)(b) was actively resisting, Det. Verma said that § 87(2)(b) kept trying to move towards him (Det. Verma believed that she might turn and try to spit at him again) and that § 87(2)(b) kept swinging her legs around (Det. Verma thought that she may try to kick him or the car or try to escape). Det. Verma said that § 87(2)(b) was seated with her buttocks on the seat and legs on the floor and facing forwards. No part of her body pressed against any portion of the car.

Det. Verma then reviewed PO Beckford's BWC. He noted that there was a space between § 87(2)(b) and the car door. Det. Verma noted again that he was keeping § 87(2)(b) body away from him and situated so she could not spit at Det. Verma. Det. Verma believed that only § 87(2)(b) head was turned to face the rear driver's-side door.

Det. Verma confirmed that he heard that § 87(2)(b) said that she could not breathe – Det. Verma said that he had had no independent recollection of her making this statement prior to reviewing the video.

Per Patrol Guide Procedure 221-01 (BR 25), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

- PO Clena has been a member of service for five years and has been a subject in one complaint and five allegations, none of which were substantiated. § 87(2)(g)
- PO Diaz has been a member of service for one year and this is the first complaint to which he has been a subject.
- PO Fratto was a member of service for three years and was subject in one complaint and two allegations, both of which were cited.
 - 202002163 § 87(2)(g), § 87(4-b) and improper use of body-worn camera. The NYPD did not impose discipline because PO Fratto resigned.
 - § 87(2)(g)
- PO Henry has been a member of service for four years and has been subject in two complaints and give allegations, none of which were substantiated. § 87(2)(g)
- PO Kader has been a member of service for five years and this is the first complaint to which he is a subject.
- Sgt. Musa has been a member of service for ten years and has been a subject in ten complaints and 21 allegations, five of which were cited or substantiated.
 - 201605419 involved substantiated allegations of a frisk and vehicle search. The Board recommended and the NYPD imposed formalized training.
 - 201908128 involved a substantiated allegation of entry of premises. The Board recommended and the NYPD imposed formalized training.
 - 202001446 § 87(2)(g), § 87(4-b)
 - 202003171 involved a substantiated allegation of discourtesy – word. The Board recommended Command Discipline A and the NYPD docked ¼ of a vacation day from Sgt. Musa.
 - § 87(2)(g)
- Det. Verma has been a member of service for five years and has been subject in one case and two allegations, neither of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of August 3, 2022, the New York City Office of the Comptroller has no record of any Notices of Claim being filed regarding this incident (BR 33).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 13

Investigator:	<u>Ethan C. Waterman</u> Signature	<u>SI Ethan Waterman</u> Print Title & Name	<u>01/31/2023</u> Date
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Squad Leader:	<u>Maura R. Roche</u> Signature	<u>IM Maura R. Roche</u> Print Title & Name	<u>01/31/2023</u> Date
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Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date
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